

JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND OPEN COMPETITION

(Authority: 41 U.S.C. 3304(a)(1))

Pursuant to the requirements of the Competition in Contracting Act (CICA) as implemented by the Federal Acquisition Regulation (FAR) Subpart 6.3 and in accordance with the requirements of FAR 6.303-1, the justification for the use of the statutory authority under FAR Subpart 6.3 is justified by the following facts and rationale required under FAR 6.303-2 as follows:

1. **Agency and Contracting Activity.** The agency is Transportation Security Administration and the Contracting Activity is Contracting and Procurement (C&P).

2. **Nature and/or Description of the Action Being Approved.**

(a) ***Nature of the action.*** This document is a “Justification for other than full and open competition” in accordance with FAR 6.302-1 “Only one responsible source and no other supplies or services will satisfy agency requirements.” In alignment with 6.302-1 (a)(2)(ii)(B), supplies may be deemed to be available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency’s requirements.

The Transportation Security Administration (TSA) intends to award a 12-month sole source contract (one 6-month base period + three 2-month option periods) with Narcorps Specialties LLC (hereafter referred to as “Narcorps”) in accordance with FAR 6.302-1 “Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements.” This requirement is for TSA’s Role Player Support Services. Narcorps will provide role players as an integral part of training exercises for the TSA Federal Air Marshal Service (FAMS), Federal Flight Deck Officer (FFDO) Recurrent Training Programs, and the Canine Training Center (CTC) Programs. These training exercises are designed to teach the FAM and FFDO law enforcement tasks in various realistic situations. Training exercises for the CTC is designed to teach canine handlers and canine assets to detect explosive material on individuals and their personal effects. Each individual role player adds a sense of realism.

This action is for an interim contract extension (up to 12 months) to current contract # 70T01018C9NOTD001 that ends on 03/31/2024. The follow-on contract competitive award is working through the acquisition process for competition and additional time is required to avoid a break in service. The TSA Role Player Support Services are a mission critical requirement that provides mission essential functions. See paragraph #6 for the details.

(b) ***Name and address of the contractor.*** Narcorps Specialties LLC, 417 Stowe Ave. STE #C, Orange Park, FL 32073.

(c) ***Contract type.*** Firm-Fixed Price and Time and Materials.

(d) **Estimated total value (including options).** Provide breakdown as shown below:

Period	Qty	Unit	Total
Base Period	6	Months	\$4,112,627.04
Option Period 1	2	Months	\$1,370,875.68
Option Period 2	2	Months	\$1,370,875.68
Option Period 3	2	Months	\$1,370,875.68
Total			\$8,225,254.08

(e) **Type of funding.** Operations and Support Training and Development (T&D).

(f) **Year of funding.** Fiscal Year 2024.

(g) **Solicitation number.** 70T01024Q7670N005.

(h) **Background information about the requirement.** Provided at the table and notes below are historical information about the previous contracts for this effort.

Contract Number	Contractor	Contract Type	Contract Term	Total Value (Including Options)	Competition
HSCEAM04C00020 See Note A	Ramcor Inc.	FFP & LH	2004-2007	\$3,000,000.00	No 8(a) Sole Source
HSTS0707C00025	Ramcor Inc.	FFP & LH	02/09/2007-04/30/2012	\$6,641,082.99	No 8(a) Sole Source
HSTS0713CTWE064 See Note B	Ramcor Inc.	FFP & LH	07/17/2013-12/30/2016	\$15,563,217.56	Yes 100% SB Set-Aside
HSTS0117COTD403 See Note C	Narcops Specialties, LLC	Hybrid FFP & LH	01/09/2017-01/08/2018	\$7,763,439.01	No Sole Source
70T01018C9NOTD001 See Note D & E	Narcops Specialties, LLC	Hybrid FFP & LH	01/09/2018-03/31/2024	\$43,647,985.99	Yes 100% SB Set-Aside

Note A –The acquisition strategy included TSA Acquisition Management System (AMS) Small Emerging Disadvantage Business (SEDB) non-competitive acquisition. It was coordinated with the Small Business Administration advocate because SEDB is equivalent to 8(a) size under the Federal Acquisition Regulation (FAR).

Note B – Ramcor, Inc. did not successfully complete performance of option period 2 under contract # HSTS0713CTWE064 and it was terminated for convenience. On 12/12/2016 Ramcor, Inc. terminated its employees and breached its contract by no longer performing Role Player Support Services and did not report for scheduled TSA training exercises.

Note C – Prior to Ramcor, Inc.'s breach of contract, Narcops Specialties, LLC was in the process of being novated to continue contractor performance under contract # HSTS0713CTWE064. Therefore, contract # HSTS0117COTD403 was awarded as a 1-year sole source contract to avoid a break in service while TSA worked the follow-on contract competition process.

Note D – Through market research techniques, such as Request for Information (RFI) posted at Federal Business Opportunity (FedBizOpps), it was determined there are no other 8(a) contractors that can perform this work. Accordingly, the DHS Office of Small Disadvantaged Business Utilization (SDBU) concurred with the Contracting Officer's recommendation to remove this requirement from the 8(a) program and to issue the solicitation as 100% SB Set-Aside.

Note E – Contract # 70T01018C9NOTD001 period of performance was extended after re-aligning unused labor hours from previous years to option period 4. In addition, a 6-month extension was approved via FAR 52.217-8 Option to Extend Services. Therefore, the ultimate completion date was modified to 03/31/2024.

3. **Description of Supplies/Services.** The major objective of this requirement is to provide role players as an integral part of training exercises for the TSA, FAMS, FFDO, and CTC training programs. These training exercises are designed to teach the FAM and FFDO law enforcement tasks in various realistic situations. Training exercises for the CTC are designed to teach canine handlers and canine assets to detect explosive material on individuals and their personal effects. Each individual role player adds a sense of realism. Role players must have the ability to perform through an inflexible script, as well as an impromptu basis. Depending on the situation, a role player must be able to "live" a role and freely adapt to it in response to the actions of each individual TSA trainee, FAM, FFDO, or

CTC handler and canine asset. If this adaptation is not completed, the immediacy and realism of a tense situation may be destroyed. The role player must thoroughly understand the objective of each training situation and of the roles being played. Each role player must be able to adjust to a variety of outcomes and react in the manner most appropriate to the way in which each situation develops.

Except for GFP, the Contractor shall furnish all personnel, supervision, management, equipment, materials, transportation, tools, and supplies required to plan, schedule, coordinate, and assure effective performance of all required role player support services for TSA, FAMS, and FFDO training at the TSATC, FAA, WJHTC, Atlantic City International Airport, Atlantic City, New Jersey; FFDO training at the Dallas Federal Flight Deck Officer Training Facility, Coppel, Texas; FFDO training at the Atlanta Federal Flight Deck Officer Training Facility, College Park, Georgia; and CTC, LAFB, San Antonio, Texas. These services include scheduling Role Player Personnel, in coordination with the Contracting Officer's Technical Representative (COR) and training Role Player Personnel, in coordination with the COR, TSA, FAMS, FFDO, and CTC personnel.

4. **Identification of Statutory Authority Permitting Other Than Full and Open Competition.** The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1)) "Only one responsible source and no other supplies or services will satisfy agency requirements" (See FAR 6.302-1). In alignment with 6.302-1 (a)(2)(ii)(B), supplies may be deemed to be available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, when it is likely that award to any other source would result in unacceptable delays in fulfilling the agency's requirements.
5. **Identification of Exception to the Buy American Statute** Not applicable. This acquisition is for Role Player Support Services, not Supplies (FAR 25.1) or Construction Materials (FAR 25.2).
6. **Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.** The TSA FAMS, FFDO Recurrent Training Programs, and the CTC, utilize role players to train the TSA front-line operational workforce. The absence of the mission critical Role Player Support Services would directly impact operations for the three below TSA Programs and would create a significant risk to national security as follows:

(a) **Federal Air Marshal Service (FAMS):** The TSATC utilizes role players to conduct reality based training (RBT) to train FAMS Candidates during Federal Air Marshal Training Program. The TSATC utilizes approximately 30 roles players each day. Without 30 role-players per day, Monday through Friday, the TSATC would have to make several adjustments to the training environment. Instructors would then need to assume the role of role-player in order to continue training. This would diminish the normal quantity of instructors capable of providing immediate real-time feedback to the FAMS Candidates. The TSATC would also need to activate Non-Mission Status (NMS) FAMS from local field to the TSATC to serve as passive Role Players. Overall, RBT would be diminished by the inability to have the appropriate number of role-players for all the RBT blocks of instruction. This short term internal role player alternative is not a viable solution and cannot be sustained without serious impact to TSA's readiness and the ability to effectively train and prepare FAMS to defend the aircraft.

FAMS are deployed on missions aboard United States flagged commercial aviation worldwide. They form an essential component within TSA's risk based and layered approach to transportation security. Basic and advanced FAM training occurs at the TSA Training Center in Atlantic City, NJ and is an indispensable portion of that training involves reality based, force on force training exercises utilizing

trained role-players. The interactions that FAM students have with the role players are critical to providing the skills necessary to secure our nation's transportation system. The absence of role players detracts from the training environment and the formidable stages of FAM training where students are taught how to interact with the public, and when necessary utilize force, up to and including deadly force, to manage a gambit of scenarios from a hijacking, to a suicide bomber to a disorderly subject.

(b) ***Federal Flight Deck Officer (FFDO):*** The Arming Pilots Against Terrorism Act (APATA) requires FFDOs to complete mission critical recurrent training. If an interim contract is not awarded and there is a break in Role Player Support Services, then this will disrupt recurrent training at the Atlantic City, NJ; Dallas, TX; and Atlanta, GA FFDO Training Sites. Recurrent training occurs Monday-Thursday twice each week in Atlantic City and Dallas, and once a week in Atlanta. One hundred and twenty (120) pilots will be affected by this service disruption every week. A short term internal role player alternative solution, by way of Non-Mission Status Federal Air Marshals serving as passive role players, is not a viable solution and cannot be sustained with any length of time without serious impact to TSA's readiness and the ability to effectively train and prepare FFDOs to defend the aircraft cabin.

If there are a lack of Role Players for FFDO Recurrent Training events, FFDO training and preparation is impacted due to the Program being unable to provide FFDOs live scenarios during their training. This has a direct National Security impact in that effective training for Law Enforcement is degraded without providing live interactions with Role Player individuals. By taking away the live interactions, the FFDOs do not encounter real life scenarios that may play out at 30,000 feet with individuals who are able to adjust the reaction of the FFDO.

(c) ***National Explosives Detection Canine Team Program (NEDCTP):*** All of the Explosive Detection Canine (EDC) training being conducted at the Canine Training Center are designated for deployment for passenger screening, aviation, multimodal, maritime, mass transit, and cargo environments, and are an integral part of the overall TSA security mission. A critical component of this training is the canine interaction with a large number of Role Players on-site each training day. Without these available role players, the EDC training comes to a stop, substantially delaying canine team deployment to their operational security mission to assist in keeping explosive devices from being introduced into transportation systems.

The interim sole source contract will enable the continuation of mission essential services, and prevent a degradation of national security. This interim sole source contract will allow additional time for the competitive procurement of the follow-on contract and security vetting of a potential new contractor which is estimated at two (2) to three (3) months. The current milestone schedule for the competitive follow-on contract includes the following next steps in this process: Acquisition Plan (AP), Solicitation Review Board (SRB), Solicitation, receipt of proposals, technical and price evaluations, Source Selection Decision (SSD) Memo, pre and post Business Clearance Memorandum (BCM) and Congressional Notification (CN), prior to contract award.

The need for an interim contract was not the result of poor planning as the need was created by circumstances outside of TSA control. Negotiations with the incumbent contractor caused delays to the schedule when trying to reach an agreement on contract prices, that were increased on a yearly basis due to Service Contract Wage Determination adjustments. Those negotiations required input from outside dependencies, such as subject matter experts at the Department of Labor, that protracted negotiations and caused a delay to the overall acquisition schedule for the follow-on competitive contract. Accordingly, that resulted in delays to market research, procurement package and procurement strategy reviews.

The proposed contractor Narcorps as the incumbent has unique qualifications to fulfill this interim requirement and avoid a break in service that would result in loss of these mission critical Role Player Support services.

7. **Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.** A pre-solicitation notice will be posted at SAM.gov in accordance with FAR 5.201 after this J&A is approved. The notice will stipulate the Government intends to solicit and negotiate with only one source under the authority of 6.302-1.
8. **Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.** The Contracting Officer will utilize Narcorps' GSA price list, the independent government cost estimate, and the prior acquisition history for the same services to determine that the anticipated price will be fair and reasonable. In addition, the contracting officer will seek additional discounts off Narcorps' GSA price list.
9. **Description of Market Research.** TSA issued a Request for Information (RFI) # 70T01023I7670N029 via sam.gov on 04/26/2023. A total of 21 companies responded, five (5) of which were Woman Owned Small Business (WOSB), including the incumbent, are available on GSA Schedule and determined capable of performing the requirements of the Statement of Work (SOW). Accordingly, The TSA Small Business office has approved the acquisition strategy for 100% WOSB set aside for the follow-on competitive contract, to be solicited on GSA Schedule. As detailed in paragraph #6 above, this J&A is for an interim sole source contract extension (up to 12 months) to current contract # 70T01018C9NOTD001 that ends on 03/31/2024. The follow-on contract competitive award is working through the acquisition process for competition and additional time is required to avoid a break in service. The TSA Role Player Support Services are a mission essential requirement that are critical to TSA's mission.
10. **Any Other Facts Supporting the Use of Other Than Full and Open Competition.**

See paragraph 6 above.
11. **A Listing of the Sources, if Any That Expressed, in Writing, an Interest in the Acquisition.**

See paragraph 7 above.
12. **A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.**

See paragraph 9 above.

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13. **Contracting Officer's Certification.** I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.

[Redacted Signature] [Redacted Date]

[Redacted Name] Date
Contracting Officer

14. **Technical/Requirements Personnel Certification.** I certify this requirement meets the Government's minimum need and that the supporting data, which forms a basis for this justification, is complete and accurate.

[Redacted Signature] [Redacted Date]

[Redacted Name] Date
Supervisory Federal Air Marshal
Law Enforcement/Federal Air Marshal Service

15. **Competition Advocate Approval.**

[Redacted Signature] [Redacted Date]

[Redacted Name] Date
Director
Acquisition Policy Division